

Court No. - 39

Case :- WRIT - C No. - 43630 of 2018

Petitioner :- Om Prakash

Respondent :- State Of U P And 4 Others

Counsel for Petitioner :- Shashi Bhushan Mishra

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble B. Amit Sthalekar,J.

Hon'ble Mrs. Manju Rani Chauhan,J.

The petitioner in the writ petition is seeking quashing of the recovery citation dated 6.12.2018 whereby a sum of Rs.1,11,134 is sought to be recovered from him towards Electricity dues. According to the petitioner he has already deposited Rs.1,12,546/- on 25.8.218, Annexure-5 to the writ petition and therefore nothing is outstanding against him.

Be that as it may since the matter relates to the disputed bills the petitioner has a remedy under clause 6.5 of the Electricity Supply Code 2005.

This writ petition is therefore disposed of with a direction that if the petitioner prefers a representation in this regard alongwith certified copy of this order before the respondent no. 5- Executive Engineer/Prescribed Authority, Electricity Distribution Division II Purvanchal Vidyut Vitaran Nigam Ltd., Allahabad, the same shall be considered and decided by the respondent no. 5 within a period of 15 days thereafter.

Alongwith his representation the petitioner shall also present himself before the respondent no. 5.

Till such decision is taken by the respondent no. 4, the recovery in pursuance of the impugned citation dated 6.12.2018 shall remain in abeyance.

In case the petitioner does not submit his representation within the stipulated time, the interm protection granted in this order shall stand automatically vacated.

Order Date :- 3.1.2019

o.k.